SANGGUNIANG PANLUNGSOD LEGAL ANNOTATION GUIDE

Evaluating National Statute vs. Local Ordinance Legal Consistency
Ateneo de Davao University — Computer Studies Cluster

Thesis Title	*A Coarse-to-Fine Semantic Conflict Detection System for Ex-Ante Davao City Ordinances Using Information Retrieval and Natural Language Inference*
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1. Project Purpose & Your Role

Welcome! As a legal researcher or legislative staff member of the Sangguniang Panlungsod, your everyday work ensures that Davao City ordinances are well-crafted, effective, and legally sound.

For our undergraduate thesis, we are building an automated tool to assist local governments in screening draft ordinance provisions before they are enacted, flagging potential legal clashes against national laws early during the committee review process.

To evaluate and train this system, we need Domain Expert Ground Truth—authoritative, real-world consistency judgments from legal professionals like you.

We are truly grateful for your time, dedication, and generosity in sharing your valuable domain expertise to support our undergraduate thesis. Your contributions play a vital role in advancing this research and shaping a meaningful, impactful tool for legislative work.

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2. The Core Task: Comparing Text Pairs

For each assigned item, you will compare two legal texts:

National Statute (The Standard): A specific section from a Philippine Republic Act or national law.
Proposed Local Ordinance (The Draft Clause): A drafted section of a proposed Davao City ordinance.

When it comes to evaluation, this will be your key guiding question:

"Based strictly on this specific national statute provision, does the local ordinance draft conflict with it, comply with it, or regulate a completely separate matter?"

Evaluation Rule: Judge each pair only against the specific National Statute section provided in that item. Do not bring in other unlisted statutes from memory.

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3. The Three Choices Explained

CHOICE 1: CONTRADICTION (Legal Conflict / Overreach)

Meaning: The draft local ordinance violates, weakens, or exceeds what the national statute establishes *(Ultra Vires / Magtajas Doctrine)*.

- **Exceeding Penalty Caps:** National law *(RA 7160 Sec. 458)* **strictly limits city ordinance fines to ₱5,000** and imprisonment to 1 year. A local draft **setting a ₱25,000 fine** or real property title forfeiture is a **contradiction.**

- **Exceeding Time Limits:** National law *(RA 7581 Sec. 6)* **limits automatic calamity price freezes to 60 days**. A draft **setting a 180-day freeze** is a **contradiction.**

- **Withholding Guaranteed Rights/Discounts:** National law *(RA 11314)* guarantees a 20% student fare discount all year. A draft cutting it to 10% or suspending it during summer breaks/holidays is a **contradiction**.

- **Encroaching on National Agency Powers:** National law gives the **Energy Regulatory Commission (ERC) exclusive power over power rates** and **Congress/NTC exclusive power over telecom franchises.** A draft attempting to set **local electric rate caps or issue telecom franchises** is a **contradiction**.

- **Euphemisms Hiding Violations:** National law *(RA 9344)* prohibits detaining minors for curfew violations. A draft that holds minors overnight in lock-up facilities (even if politely termed "overnight reflection in a youth sanctuary") is a contradiction.

CHOICE 2: ENTAILMENT (Compliant / Lawful Execution)

Meaning: The draft local ordinance directly adopts, enforces, or lawfully executes what the national law requires or authorizes.

- **Direct Adoption:** The local draft adopts national highway speed limits (e.g., 80 km/h for passenger cars under RA 4136).

- **Statutory Budget Formulas:** The draft appropriates exactly 20% of its National Tax Allotment to local development (RA 7160 Sec. 287) or 5% of regular revenues to disaster funds (RA 10121).

- **Respecting Required Clearance Steps:** The draft requires sand-and-gravel quarry operators to present a national DENR Environmental Compliance Certificate (ECC) before receiving a Mayor's Permit.

- **Non-Custodial Youth Care:** The draft directs apprehended youth to community-based counseling rather than detention, adhering to RA 9344.

CHOICE 3: NEUTRAL (Independent / Unrelated Subject Matter)

Meaning: Both laws may belong to the same broad field (e.g., health, transportation, taxation), but they govern completely separate obligations and do not conflict or depend on each other.

- **Health:** National law mandates reporting notifiable infectious diseases to DOH, while the local draft sets hygiene rules for wiping waiting room benches or banning mercury thermometers.

- **Local Governance:** National law sets the juvenile criminal exemption age (15 years old), while the local draft sets minimum floor dimensions for daycare centers (30 sq.m.).

- **Public Utilities:** National law sets electric utility rate jurisdiction, while the local draft specifies reflective tape widths on street sweeper vests or median shrub trimming heights.

4. Quick 3-Step Decision Checklist

- **Step 1:** Does the draft clash with, exceed, or remove what national law provides?
  - **YES ➔** Choose **CONTRADICTION**

- **Step 2:** Does the draft directly enforce, execute, or stay within the national rule?
  - **YES ➔** Choose **ENTAILMENT**

- **Step 3:** Are the two laws talking about completely separate administrative matters?
  - **YES ➔** Choose **NEUTRAL**

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5. Desk Cheat Sheet: Key Legal Ceilings & Thresholds

Subject Area	National Law Baseline	Red Flag in Local Draft (Contradiction)
Ordinance Penalties	Max **₱5,000 fine** / **1 year jail** *(RA 7160 Sec. 458)*	Drafts imposing ₱10,000–₱25,000 fines or property title confiscation.
Calamity Price Freeze	Max **60 days** duration *(RA 7581 Sec. 6)*	Drafts imposing 90-day or 180-day local price freezes.

Processing Time (EODB)	Max **3 days** (Simple), **7 days** (Complex) *(RA 11032)*	Drafts taking 15 days for simple permits or indefinite holds.
Student Fare Discount	**20% discount**, year-round on all transit *(RA 11314)*	Drafts cutting discounts to 10% or suspending during vacations.
Juvenile Justice	Age **15 and below** exempt from criminal liability *(RA 9344)*	Drafts locking up minors or charging 12-year-olds in court.
Real Property Tax	Basic tax capped at **max 2%** for cities *(RA 7160 Sec. 233)*	Drafts setting 3% to 5%, or hiking rates without council ordinance.
Amusement Tax	Capped at **max 30%**; school plays/events exempt *(RA 7160 Sec. 140)*	Drafts charging 35%, or levying tax on school dramatic/athletic events.
Local Development Fund	At least **20%** of Annual Tax Allotment *(RA 7160 Sec. 287)*	Drafts allocating less than 20% (e.g., 7%) or using funds for travel.
Disaster Fund (LDRRMF)	At least **5%** of regular revenue; 30% Quick Response *(RA 10121)*	Drafts setting 2%, using QRF for tourism, or reverting unspent funds.

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6. How to Submit Your Answers

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Thank you so much for your time, and for contributing your legal expertise to the development of AI-assisted legislative review tools for Davao City!